

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #10	CCRB Case #: 201707179	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 08/27/2017 8:30 PM	Location of Incident: 5th Avenue and East 56th Street	18 Mo. SOL 2/27/2019	Precinct: 18
Date/Time CV Reported Thu, 08/31/2017 1:35 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/31/2017 1:35 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Raso	17185	951117	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Raso	Abuse: Police Officer Edward Raso threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Edward Raso	Discourtesy: Police Officer Edward Raso spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on August 31, 2017.

On August 27, 2017, at approximately 8:30 p.m., § 87(2)(b) an Uber driver, was looking for his passengers in the vicinity of 5th Avenue and East 56th Street in Manhattan when he was pulled over by Police Officer Edward Raso of the 18th Precinct (see allegations not pleaded). PO Raso ordered § 87(2)(b) to produce his license and remove his key from the ignition. § 87(2)(b) initially did not comply, but ultimately complied with these orders, and PO Raso walked toward the rear of § 87(2)(b)'s vehicle. § 87(2)(b) exited his vehicle. PO Raso allegedly issued § 87(2)(b) multiple orders, including to remain in his vehicle, before he told § 87(2)(b) that he would arrest him, and asked him if he wanted to spend the night in jail (**Allegation A**). § 87(2)(b) returned to his vehicle. PO Raso issued him a summons for obstructing traffic and then told him that he was the “stupidest person in the world” (**Allegation B**). § 87(2)(b) left after he found his passengers.

There was no available video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A FOIL request was sent to the New York City Comptroller’s Office on November 15, 2017 regarding a Notice of Claim; however, this request is pending (Board Review 09).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Raso has been a member-of-service for six years and has one prior CCRB complaint filed against him involving two allegations, neither of which were substantiated § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Edward Raso threatened to arrest § 87(2)(b)

Allegation B – Discourtesy: Police Officer Edward Raso spoke discourteously to § 87(2)(b)

It is undisputed that after § 87(2)(b) exited his vehicle, PO Raso ordered him back into his vehicle and then threatened to arrest him. After this threat, § 87(2)(b) returned to his vehicle (Board Review 02) (Board Review 03).

§ 87(2)(b) testified that when he exited his vehicle, PO Raso yelled at him, asking whether he “got out of [his] car.” § 87(2)(b) apologized and PO Raso ordered § 87(2)(b) to look straight ahead. § 87(2)(b) asked, “Why?”, and PO Raso ordered § 87(2)(b) to remain in his vehicle, to look ahead of him, and to close his window. § 87(2)(b) again, asked why he needed to do this, and PO Raso yelled at § 87(2)(b) that he would arrest him, and asked if he wanted to spend the night in jail. After PO Raso issued § 87(2)(b) the summons, he called him the “stupidest person in the world” for arguing with the police.

PO Raso testified that while he was writing the summons, § 87(2)(b) exited his vehicle and took two steps toward PO Raso. PO Raso stated, “Sir, get back in the car. If you don’t get back in the car, I’m instructing you right now that you’re going to be arrested.” PO Raso testified that he could have arrested § 87(2)(b) for obstructing governmental administration, which he violated when he left his vehicle. PO Raso denied calling § 87(2)(b) the “stupidest person in the world,” or making any discourteous statements toward § 87(2)(b) (Board Review 09).

§ 87(2)(b) s passengers, § 87(2)(b) and § 87(2)(b) § 87(2)(b) Portuguese-speakers visiting from Brazil, were not present until after the exchange between § 87(2)(b) and PO Raso (Board Review 04). § 87(2)(b) described a dark-skinned Hispanic male officer as present when PO Raso made these remarks; however, the roll call lists seven officers assigned to PO Raso’s post, all of whom are white males (Board Review 05). Additionally, PO Raso testified that the only other officers who were present during this incident were two white males assigned to the Critical Response Command who were guarding Trump Tower and arrived after the exchange between PO Raso and § 87(2)(b)

A person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act. New York Penal Law, Section 195.05 (Board Review 07).

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **exonerated**.

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date